SAME-SEX MARRIAGES

SORRY, NO WEDDING BELLS

By Kaushik Deka

In a setback to India's marriage equality movement, the Supreme Court on October 17 ruled against legalising same-sex marriages, holding that only the legislature can decide on the issue. While hearing 21 petitions filed by same-sex couples and activists, the top court made it clear that it can't tinker with the scope of the Special Marriage Act (SMA), 1954, to include queer people and that it will not interfere with religious personal laws, leaving it to Parliament to look into the subject. The five-judge constitution bench, which had held a marathon hearing of 10 days in April-May earlier this year, comprised Chief Justice (CJI) D.Y. Chandrachud and Justices Sanjay Kishan Kaul, S. Ravindra Bhat, Hima Kohli and P.S. Narasimha.

Four separate judgments were given, one each by CJI Chandrachud, Justice Kaul and Justice Narasimha, and one written jointly by Justices Bhat and Kohli. The majority verdicts by Justices Bhat, Kohli and Narasimha declined to grant same-sex couples the right to enter civil unions and adopt children, while the minority verdicts by CJI Chandrachud and Justice Kaul batted for it. The bench, nonetheless, was unanimous in recognising that same-sex couples must not be discriminated against and asked the Centre and states to make laws to protect their dignity and rights.

What the SC said unanimously

1. Marriage is not a Fundamental Right: While the SC agreed that the right to seek social and legal validation through marriage is a matter of individual choice protected by the Constitution, it said there is no unqualified right to marriage guaranteed by the Constitution that qualifies it as a fundamental freedom. The right to marriage is a statutory right flowing from a legally enforceable customary practice. However, the SC recognised queer people's right to choose a partner and enjoy physical intimacy with them, including the undisturbed right to privacy and autonomy. If this right is threatened, the court ruled, it falls upon the state to extend protection to them.
Implications: While same-sex couples cannot be discriminated against, they can't enjoy marital rights based on their relationship and proof of cohabitation.

2. No tweak to SMA: The SC said the powers vested in it to review the constitutional validity of a law do not enable it to enter into such matters, "particularly those impinging on policy, which fall in the legislative domain". So, it can't read words into the SMA provisions to include queer couples in its scope. Only the legislature can do that.
Implications: Same-sex couples can't marry by invoking the SMA and demand rights under it. They have to wait for legislatures to grant them that right.

3. Transgender persons can marry: The court ruled that transgender persons in heterosexual relationships have the right to marry under existing laws, including personal laws that regulate marriage.
Implication: A transgender person can be heterosexual or homosexual. Only heterosexual transgender persons can marry (if each partner meets other requirements in the applicable law). Such a marriage will be recognised under relevant marriage laws.

4. Government's proposal to appoint a committee: The court accepted Solicitor General Tushar Mehta's proposal on behalf of the Centre to set up a committee led by the cabinet secretary to look into practical difficulties same-sex couples face. The bench agreed that queer couples face discrimination in accessing basic services and said the panel must look into this.
Implications: The panel will be able



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